

Companies Act 1909 and deposited at the Board of Trade in pursuance of the requirements of section seven of that Act;

“Insolvent” means, in relation to an assurance company at any relevant date, that if proceedings had been taken for the winding up of the company the court could, in accordance with the provisions of sections one hundred and sixty-eight and one hundred and sixty-nine of the Companies Act 1929, hold, or have held, that the company was at that date unable to pay its debts.

Short title  
and extent.

5.—(1) This Act may be cited as the Assurance Companies (Winding up) Act 1933.

(2) This Act shall not extend to Northern Ireland.

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## CHAPTER 10.

An Act to authorise the prohibition of the importation of Russian goods.

[13th April 1933.]

**B**E it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Power to  
prohibit  
the impor-  
tation of  
Russian  
goods.

1.—(1) It shall be lawful for His Majesty by proclamation to prohibit the importation into the United Kingdom of all goods whatsoever grown, produced or manufactured in the Union of Soviet Socialist Republics, or of any class or description of such goods specified in the proclamation.

(2) Goods prohibited to be imported by virtue of a proclamation under this Act shall be deemed to be included among the goods enumerated and described in the Table of Prohibitions and Restrictions Inwards contained in section forty-two of the Customs Consoli-

dation Act, 1876, and the provisions of that Act and of any Act amending or extending that Act shall apply accordingly.

(3) If at any time a question arises whether any goods imported into the United Kingdom were grown, produced or manufactured in the said Union, it shall be lawful for the Commissioners to require the importer to furnish to them in such form as they may prescribe proof in respect of the country in which the goods were grown, produced or manufactured, and unless proof is furnished to the satisfaction of the Commissioners that the goods were grown, produced or manufactured elsewhere than in the said Union, the goods shall be deemed to be goods grown, produced or manufactured in the said Union.

(4) Where goods are manufactured partly in the said Union and partly in some other country, the goods shall be deemed, for the purposes of this Act, to be goods manufactured in the said Union unless it is proved to the satisfaction of the Commissioners that twenty-five per cent. or more of the value of the goods at the time of their exportation to the United Kingdom is attributable to processes of manufacture undergone since the goods last left the said Union.

(5) Subject to compliance with such conditions as to security for the re-exportation of the goods as the Commissioners may impose, a proclamation under this Act shall not apply to goods imported for exportation after transit through the United Kingdom or by way of transhipment.

(6) A proclamation under this Act may be revoked or varied by a subsequent proclamation.

(7) A proclamation under this Act, other than a proclamation revoking a previous proclamation, shall cease to have effect at the expiration of three months from the making thereof; but, if before the expiration of the said period of three months a resolution is passed by each House of Parliament praying that the proclamation be continued in force, either for such period as may be specified in the resolution or until a further resolution

praying that it be revoked is passed by each House, it shall be lawful for His Majesty by further proclamation to continue it in force in accordance with the terms of the resolution, but without prejudice to His power to revoke it at any time :

Provided that in reckoning any such period of three months as aforesaid, no account shall be taken of any time during which Parliament is dissolved or prorogued or during which both Houses are adjourned for more than four days.

Provision  
as to  
licences.

2.—(1) The Board of Trade have power by licence to authorise, either generally or in any particular case, the importation of any of the goods, or of any class or description of the goods, prohibited to be imported by virtue of a proclamation under this Act.

(2) A licence granted for the purposes of this Act may be granted on such terms and subject to such conditions (including the payment of a fee not exceeding five pounds) as the Board of Trade may think proper.

(3) A licence granted for the purposes of this Act shall not be transferable.

Relief in case  
of non-fulfil-  
ment of con-  
tract due to  
existence of  
proclamation  
under Act.

3. On any proceedings against any person in respect of the non-fulfilment of any contract, it shall be a good defence to shew that the non-fulfilment was due to a proclamation under this Act being in force.

Short title,  
commence-  
ment and  
interpreta-  
tion.

4.—(1) This Act may be cited as the Russian Goods (Import Prohibition) Act, 1933.

(2) This Act shall come into operation on the eighteenth day of April, nineteen hundred and thirty-three.

(3) In this Act the expression “ the Commissioners ” means the Commissioners of Customs and Excise, and this Act shall be deemed to be an Act relating to customs within the meaning of the Customs Consolidation Act, 1876.